

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RICKY GARCIA MARTE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT
DETECTIVE WILFREDO BENITEZ
SHIELD NO.: 5506, POLICE OFFICER
RIEGUY FERNANDEZ, and police officers
of the 44th Police Precinct whose names
are yet unknown,

Defendant.

SUMMONS

Index No.:

TO THE ABOVE NAMED DEFENDANTS

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: July 8, 2024

Plaintiff's address: 321 East 169th Street
Bronx, NY

ELLIOT H. FULD
930 Grand Concourse-Suite 1G
Bronx, NY 10451
(718) 410-4111

BASIS OF VENUE- PLAINTIFF'S RESIDENCE

Upon your failure to appear, judgment will be taken against you by default for the sum \$1,000,000.00 and punitive damages with interest and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RICKY GARCIA MARTE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT DETECTIVE
WILFREDO BENITEZ SHIELD NO.: 5506,
POLICE OFFICER RIEGUY FERNANDEZ, and
police officers of the 44th Police Precinct whose
names are yet unknown,

Defendant.

COMPLAINT

INDEX NO.:

NYC Claim #:2020PD029783

RICKY GARCIA MARTE, by his attorney, Elliot H. Fuld, complains of the Defendants and alleges, upon information and belief as follows:

1. RICKY GARCIA MARTE was, at all times of the incident described in this complaint, a resident of the City and State of New York, residing at 321 East 169th Street, County of Bronx.
2. DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506, POLICE OFFICER RIEGUY FERNANDEZ, and police officers of the 44th Police Precinct whose names are yet unknown were and at all times herein and upon information and belief, are police officers with the New York City Police Department with regards to the incidents described herein.

3. DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506, POLICE OFFICER RIEGUY FERNANDEZ, and police officers of the 44th Police Precinct whose names are yet unknown were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.
4. DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506, POLICE OFFICER RIEGUY FERNANDEZ, and police officers of the 44th Police Precinct whose names are yet unknown, as employees of the New York City Police Department, were acting as agents, servants and/or employees of the City of New York.
5. THE CITY OF NEW YORK, at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AND AS FOR A FIRST CAUSE OF ACTION

6. At all times stated herein, Plaintiff operated and owned a car-wash business, licensed in the City of New York, in the area of 172nd Street and Jerome Avenue, Bronx, New York.
7. On or about October 11, 2023, December 23, 2023 and January 12, 2024, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506, POLICE OFFICER RIEGUY FERNANDEZ, and police

officers of the 44th Police Precinct whose names are yet unknown harassed, intimidated, improperly detained and improperly issued summonses to Plaintiff.

8. The summonses Defendants issued to Plaintiff were all dismissed.
9. On each occasion cited supra, Defendant DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506 was in charge of the police presence and on each occasion, DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506 directed his fellow officers to violate Plaintiff's civil and constitutional rights.
10. On January 12, 2024, DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506, for the third time, drove to Plaintiff's business and threatened Plaintiff that if Plaintiff did not cease doing business, DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506 would return and exact punishment.
11. Approximately five minutes later, Defendants with DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506 returned to arrest Plaintiff. Plaintiff again showed Defendants his license to do business.
12. DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506 responded that he was "the boss" and threatened Plaintiff.
13. Defendants then began assaulting Plaintiff, handcuffed Plaintiff, injured Plaintiff's right arm and shoulder and hauled Plaintiff to the 44th Police Precinct where Defendants and

DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506 issued Plaintiff a summons for resisting arrest and obstructing governmental administration.

14. Plaintiff was unlawfully detained and imprisoned for over five hours before the summons was issued. The case number assigned to that summons was CR-000467-24BX.

15. That summons was subsequently dismissed on May 9, 2024, after three court appearances on February 1, 2024, March 21, 2024 and May 9, 2024.

16. At the time of the arrest, Defendants seized Plaintiff's van, tools, generator, washer, vacuum and polish machine, all of which were damaged beyond repair while in police custody.

17. Plaintiff was unable to work for three months because Defendants refused to return the aforementioned equipment.

18. Since that incident, Plaintiff has received medical care and psychological care for the injuries he suffered at the hand of Defendants.

19. At the time of the initial stop, search and detention, and through the time of Plaintiff's release, the police were aware, or should have been aware, that there was no basis to stop, search or detain Plaintiff.

20. Beginning with original incident and continuing to the present, the Police have persistently targeted Plaintiff and issued many frivolous summonses when Plaintiff is lawfully doing business at 172nd Street and Jerome Avenue, Bronx, NY. The Defendants' pattern of harassing behavior which has violated Plaintiff's state and federal civil rights are as follows:

21. On or about February 15, 2024, Plaintiff, by counsel, served upon the Comptroller of the City of New York, Notice of Claim as required by the General Municipal Law.

22. On May 30, 2024, Plaintiff was orally examined under oath pursuant to section 50-h of the General Municipal Law.

23. That more than thirty (30) days have elapsed since the service of each Claim and the adjustment or payment thereof has been neglected or refused.

24. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the unlawful arrest, imprisonment, harassment and violation of civil and constitutional rights which ended on May 9, 2024 and began on October 11, 2023..

25. As a result of the false arrests of Plaintiff by Defendants, Plaintiff demands judgment against the Defendants and was damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

AND AS FOR A SECOND CAUSE OF ACTION

26. Plaintiffs repeat all the allegations contained in paragraphs "1" through "25" inclusive as though more fully set forth herein.

27. As a result of Defendants' actions, Plaintiff was repeatedly falsely imprisoned.

28. That at the times of Plaintiff's imprisonments, Defendants, their agents, servants and/or employees knew or should have known that Plaintiffs should not have been incarcerated.

29. That the Defendants, their agents, servants and/or employees failed, refused or neglected to undertake any measures which could have resulted in Plaintiff's release.

30. That as a result of Defendants' action, Plaintiff was compelled to, inter alia, suffer embarrassment, humiliation, fear and paranoia.

31. In view of the foregoing, Plaintiff has been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AND AS FOR A THIRD CAUSE OF ACTION

32. Plaintiffs repeat all the allegations contained in paragraphs "1" through "31" inclusive as though more fully set forth herein.

33. After each of Plaintiff's false arrests on October 11, 2023, December 23, 2023 and January 12, 2024 and the malicious prosecution which followed, Plaintiff was required to make appearances in Criminal Court.

34. That during the pendency of those charges, and while most of the charges are currently pending, Defendants were, and are, well aware that it did not appear that Plaintiffs had committed any crime.

35. Irrespective of that, the Defendants have continued to issue summonses and pursue criminal charges against Plaintiffs.

36. Plaintiff refused to plead guilty.

37. The Defendants' prosecution of Plaintiffs has been, and continues to be, conducted with malice or with such reckless disregard for the true set of facts underlying the "complaint" that said reckless disregard constitutes malice.

38. In view of the foregoing, Plaintiffs has been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AND AS FOR A FOURTH CAUSE OF ACTION

39. Plaintiff repeats all the allegations contained in paragraphs “1” through “38” inclusive as though more fully set forth herein.

40. The Defendants, their agents, servants and/or employees, were acting “under color of state law” as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

41. In performing that acts as aforesaid, the Defendants deprived Plaintiff of his civil and constitutional rights as defined by 42 U.S.C. 1983 et seq. and the law interpreting said section.

42. Plaintiff was targeted and his civil rights were violated on a regular basis when officers subjected Plaintiff to searches and seizures on a monthly, and at times weekly, basis.

43. Specifically, Defendants violated Plaintiff’s rights, subjecting him to stop, search and arrest on the following dates: October 11, 2023, December 23, 2023 and January 12, 2024.

44. Upon information and belief and from news sources, the New York City Police regularly engage in stop and frisks of minorities and other persons similarly situated as Plaintiff.

45. Defendants' actions were part and parcel of a continuing and ongoing course of conduct as well as a concerted plan and scheme to randomly stop, detain and search minorities for no other reason than their ethnic makeup.

46. Upon information and belief, Defendants' actions were not only motivated by their plan to discriminate against Plaintiff and other minorities who were similarly situated, but also by an unwritten police department quota system which requires officers to issue a certain number of summonses on a regular basis as a revenue raising tactic.

47. As a result of the foregoing, the Plaintiff has been damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

AS AND FOR A FIFTH CAUSE OF ACTION

48. Plaintiff repeats all the allegations contained in paragraphs "1" through "47" inclusive as though more fully set forth herein.

49. Upon information and belief, DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506 has been sued on at least twelve (12) other occasions for committing the same unconstitutional acts to other minority citizens and in each of those cases, Defendants

have acknowledged those violations and settled cases paying Plaintiffs situated similarly to Plaintiff in excess of \$470,000.00.

50. Those lawsuits accused DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506 of conduct in years 2013-2020.

51. In view of that, Defendants were well aware of DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506 unconstitutional and improper actions and did nothing and continue to do nothing to stop DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506 from committing further violations which preventative conduct would have saved Plaintiff from the brutal treatment at the hands of DETECTIVE WILFREDO BENITEZ SHIELD NO.: 5506.

52. In view of the foregoing, Plaintiff is entitled to an award of punitive damages.

Wherefore, Plaintiff demands of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$500,000; and
- b. On the Second Cause of Action, the sum of \$500,000; and
- c. On the Third Cause of Action, the sum of \$500,000; and
- d. On the Fourth Cause of Action, the sum of \$500,000; and
- e. Punitive Damages in the sum of \$1,000,000.

Dated: July 8, 2024

Elliot H. Fuld

Law Offices of Elliot H. Fuld
Attorneys for Plaintiff
930 Grand Concourse, Suite 1G
Bronx, New York 10451
(718) 410-4111